

Tentative Rulings

August 12, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Renteria v. Concentra Primary Care of Calif., et al*, Case No. CIVSB2511094
Defendants' Demurrer to Complaint
8/12/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **OVERRULE**. A responsive pleading will be filed within 30 days.

Case Summary

This is a medical malpractice case. Plaintiff alleges that he suffered a work injury on December 1, 2021, and was treated by Defendants. In essence, Plaintiff asserts that he was not informed that he had two torn tendons, and that, at the surgery on March 31, 2022, Defendants only repaired one of the torn tendons and failed to inform him that, despite having two torn tendons, only one would be repaired. Following the surgery he had continuing pain and was routinely evaluated, but his Defendant doctor told him the pain was normal. In October of 2024 that Plaintiff obtained a second opinion, which resulted in an MRI in January of 2025. The results of the MRI, he alleges, disclosed that he still had a torn tendon that was the cause of his pain. As such, he filed suit on December 24, 2025, alleging professional negligence against Defendants.

Statement of the Law

A demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on insufficient facts to constitute a cause of action, pursuant to Code of Civil Procedure section 430.10(e), should be granted only when the facts alleged on the face of the complaint fails to state any valid claim entitled to the plaintiff. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

Analysis

Here, Defendants argue that the cause of action is beyond the applicable statute of limitations. The Complaint was filed on December 24, 2025, more than three years after the at-issue surgery. Thus, Defendants argue that a claim for professional negligence is barred by the applicable statute of limitations under Section 340.5 of the Code of Civil Procedure.

Under Section 340.5, "an action for injury or death against a health care provider based upon such person's alleged professional negligence" must be brought within "three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (Code Civ. Proc., § 340.5.) "[T]he special statute of limitations for professional negligence actions against health care providers applies only to actions alleging injury suffered as a result of negligence in rendering the professional services that hospitals and others provide by virtue of being health care professionals: that is, the provision of medical care to patients." (*Flores v. Presbyterian Intercommunity Hosp.* (2016) 63 Cal.4th 75, 88.)

"The term 'injury' for purposes of section 340.5 'refer[s] to the damaging effect of the alleged wrongful act and not to the act itself.'" (*Filosa v. Alagappan* (2020) 59 Cal.App.5th 772, 779 [internal citation

omitted].) The injury is not necessarily the ultimate harm suffered, but it is, rather, instead at the point where “appreciable harm” is first manifested. (*Ibid.*) “An injury manifests when damage is ‘evidenced in some significant fashion; when the damage has clearly surfaced and is noticeable.’” (*Filosa, supra*, 59 Cal.App.5th at p. 779 [internal citation omitted].)

Among other cases, Plaintiff cites *Steingart v. White* (1988) 198 Cal.App.3d 406. The Court finds the *Steingart* case instructive: In *Steingart*, plaintiff discovered a lump in her breast, which the defendant doctor diagnosed as a benign condition in February 1982. The plaintiff, however, was suspicious about the diagnosis and saw a second doctor a few months later. She received a mammogram, which was negative for cancer. (*Steingart, supra*, 198 Cal.App.3d at pp. 409-410.) In 1984, she went to another doctor, who ordered another mammogram, which was again negative. (*Id.* at p. 410.) Importantly, however, it was not until April of 1985 that the *Steingart* plaintiff notice a change in the contour of her breast and was then found to have state II breast cancer. (*Ibid.*)

The plaintiff in *Steingart* filed her action in March of 1986 – more than four years after the initial examination but within one year of the diagnosis of breast cancer. (*Ibid.*) The trial court in *Steingart* granted summary judgment on the basis of the statute of limitations. However, the Court of Appeals reversed. In the decision, the *Steingart* court rejected the defendant’s argument that the plaintiff suffered an injury at the time the defendant examined her in 1982. Instead, it concluded that, although the plaintiff knew about the lump at the time of the 1982 exam, “such a condition is not a clear indication of injury, either damaging effect or appreciable harm.” (*Steingart, supra*, 198 Cal.App.3d at pp. 414-415.) Indeed, the plaintiff “was told repeatedly the lump was nonthreatening” such that no appreciable harm was manifested from the doctor’s asserted neglect until her cancer was discovered in April 1985. (*Ibid.*)

Here, looking at the pleadings, Plaintiff alleges sufficiently that no appreciable harm was manifested from Defendant Yacoub’s alleged negligence until *after* the results of his January 2025 MRI. Plaintiff alleges that Defendant Yacoub diagnosed him with two torn peroneal tendons and recommended surgery to repair both tendons; however, Defendant failed to inform Plaintiff that he had two torn tendons and only repaired one tendon. (Compl., ¶16.) After the surgery, Plaintiff remained in pain and discomfort. He routinely went back to see the Defendant doctor but was informed that the pain was normal and simply received pain medications. (Compl., ¶17.) Later, given that the pain was not subsiding, Plaintiff visited another physician for a second opinion in October 2024, and an MRI was completed in January 2025. The results of the MRI showed that he still had a torn tendon which was the cause of his pain. It was this that led to the discovery that Defendants failed disclose that he had torn two tendons and that only one was repaired. (Compl., ¶17.)

Accordingly, the case is similar to *Steingart* in that Plaintiff continued to have concerns that were – per the allegations – misdiagnosed by his physician. He was told that the pain was not concerning and was “normal” and was simply prescribed pain medication. Thus, the pleadings assert that no appreciable harm manifested from the physician’s asserted negligence until the MRI.
